

Chapter 220

CAMPAIGN FINANCE REGULATIONS

§ 220-1.	Definitions.	§ 220-7.	Special elections.
§ 220-1.1.	Contribution limitations.	§ 220-8.	Reporting.
§ 220-2.	Public database and additional reporting.	§ 220-9.	Penalties and investigations.
§ 220-2.1.	Expenditures.	§ 220-10.	Coordinated expenditures; in-kind contributions.
§ 220-3.	Electronic submission not required.	§ 220-11.	Coordinated expenditures; exceptions.
§ 220-4.	Database report accessibility.	§ 220-12.	Other in-kind contributions; redboxing.
§ 220-5.	(Reserved)	§ 220-13.	Effect upon other law.
§ 220-6.	Candidate committees and accounts.		

[HISTORY: Adopted by the County Council of Allegheny County 5-23-2023 by Ord. No. 10-23.¹ Amendments noted where applicable.]

§ 220-1. Definitions.

The following terms when used in this chapter shall have the following meanings:

CANDIDATE — Shall mean either:

- A. Any individual who files nomination papers or petitions for County elected office; or
- B. Any individual who publicly announces his or her candidacy for County elected office.

CANDIDATE COMMITTEE — The political committee, any money or assets associated with it, and any associated bank account into which all contributions in support of a campaign for County elected office shall be made, and out of which all expenditures for that office shall be made.

COORDINATED EXPENDITURE — Any expenditure made by any person (other than a candidate or candidate committee) in support of a candidate's campaign that is made in cooperation, consultation, or in concert with, or at the direction of a candidate, candidate committee, or agent thereof.

COUNTY ELECTED OFFICE — The offices of Chief Executive, Member of County Council, Controller, District Attorney, Sheriff, and Treasurer.

COVERED ELECTION — Every primary election, or general election, or special election for County elected office.

ELECTION CYCLE — Begins on the day after a covered election for the County elected office which the candidate seeks and ends on the day of the next covered election for that same County elected office. For the purposes of the contribution limits set forth in § 220.2, primary and general elections shall be considered separate elections.

1. Editor's Note: This ordinance also repealed former Ch. 220, Campaign Finance Reports and Statements, adopted 8-19-2003.

INDEPENDENT EXPENDITURE — An expenditure made for the purpose of influencing an election, without cooperation or consultation with any candidate or any political committee authorized by that candidate, and which is not made in concert with, or at the request or suggestion of, any candidate or political committee or agent thereof.

PERSON — An individual, partnership, corporation, sole proprietorship, or other form of organization permitted under the laws of the commonwealth to make political contributions. For the purposes of this chapter, person shall not include a political committee.

POLITICAL COMMITTEE — Any committee, association, political party, or other group of persons, including a candidate committee as required by § 220.3 of this chapter, operating with the purpose of influencing the outcome of an election, including but not limited to covered elections.

POLITICAL CONTRIBUTION — Money, gifts, forgiveness of debts, loans, or things having a monetary value incurred or received by a candidate for County elected office or a political committee to which they are legally associated for use in advocating or influencing the election of the candidate for County elected office. For the purposes of this chapter, political contribution shall include all coordinated expenditures.

§ 220-1.1. Contribution limitations.

- A. Except as provided in Subsection A(1) and (2), no person, except the candidate, shall make political contributions to a candidate or candidate committee per covered election for the office that the committee has been established to seek, that exceeds the limitations that are in effect and published by the Federal Election Commission as of the first day of that same calendar year. In instances where the donation limits increase in the middle of an election cycle, a candidate or candidate committee may seek donations equal to the difference between the total contribution made by a person to their candidate committee during that election cycle and the newly adopted campaign finance limits. Political contribution limits for donations made by a person to a candidate committee shall be the same as the federal contribution limit for individuals who make contributions to candidate committees.
- (1) In the event that a candidate makes political contributions to himself or herself, or to his or her own candidate committee per covered election for the office that the committee has been established to seek, in an amount that exceeds \$100,000 for any single covered election, the limitations established in Subsection A shall be doubled for all candidates for the same office in the same covered election.
- (2) In the event that a candidate exceeds the \$100,000 personal donation limit for any single covered election as established in Subsection A(1), they must, with 24 hours of exceeding such limit, provide written notification to the County Elections Division. Failure to provide such notification in a timely fashion shall be subject to the penalties imposed at § 220-9D. For the purposes of penalty calculation, each day shall constitute a separate violation of this subsection until the notification required herein is received by the County Elections Division.
- B. No political committee or candidate committee shall make political contributions to a candidate or candidate committee per covered election that exceeds the limitations that are in effect and published by the Federal Election Commission as of the first day of that same calendar year. Political contribution limits for donations made by a political committee to a candidate committee shall be the same as the federal contribution limit for PAC-Multicandidate that makes contributions to candidate committees.
- C. The limitations imposed by this section shall not apply to volunteer labor hours.

- D. No candidate for County elected office and no political committee shall accept any political contribution which exceeds the contribution limits set forth in this chapter.
- E. For reporting purposes, the date of a political contribution shall be the date that the contribution is received by the campaign. The act of pledging a political contribution or depositing a political contribution into the bank account associated with a candidate committee, or expending campaign funds that a political contribution may have been earmarked or otherwise planned for shall not be a sufficient act to indicate the date of a contribution. Similarly, stacking contributions, whereby a candidate accepts a contribution for the primary election and the general election at the same time or during the same election cycle, is prohibited.

§ 220-2. Public database and additional reporting. [Added 7-11-2023 by Ord. No. 21-23]

- A. The Division of Elections shall maintain an online database of all campaign finance reports required by § 220.8 of this chapter and other applicable commonwealth or federal law or regulation. This database shall be made accessible to the public at no charge, and shall be searchable by candidate committee name, candidate name, and by covered election year.
- B. All political committees shall report to the Division of Elections all expenditures to, or made on behalf of, any question appearing on the ballot, in the same manner required of a candidate committee, as described in § 220.8.
- C. Political committees shall report, in the same manner required of a candidate committee, as described in § 220.8, all coordinated expenditures and independent expenditures made to encourage or defeat an election outcome, or to advocate the election or defeat of a clearly identified candidate or question appearing on the ballot. This provision is in addition to any other filing and reporting provisions of this Code that apply to such committees, their treasurers and chairpersons.
- D. Every person, other than a political committee or candidate, who makes coordinated expenditures or independent expenditures for the purposes of influencing the outcome of an election for County office or regarding a County ballot question, or to advocate the election or defeat of a clearly identified candidate for County office or County ballot question appearing on the ballot, other than by contribution to a political committee or candidate, in an aggregate amount over \$100 during a calendar year, shall file with the Division of Elections a form prepared by the Division of Elections, in physical or electronic form, based on the Commonwealth's Independent Expenditure Report. Reports required by this subsection shall be filed by dates on which reports by candidates making expenditures are required under this section.
- E. The Division of Elections shall develop and promulgate regulations governing campaign finance report audits no less frequently than every three years.

§ 220-2.1. Expenditures. [Added 5-23-2023 by Ord. No. 11-23]

- A. Candidates for County elected office and candidate committees for such candidates may expend campaign funds for any purpose authorized under rules and/or regulations that are in effect and published by the Federal Election Commission as of the first day of the calendar year in which the funds are expended.
- B. In addition to the expenditures permissible under the terms of Subsection A, a candidate committee may make use of funds to pay for family care expenses incurred by a candidate for County elected office or to reimburse a candidate for County elected office during an election cycle if said funds are used to pay for reasonable and necessary family care for the time the candidate is engaging in

campaign activity such that the family care expenses would not otherwise be incurred but for or in absence of a campaign for County elected office.

- (1) The funds eligible for use pursuant to the terms this subsection shall be those received and held by a candidate committee as contributions authorized by and in line with the regulations and requirements established pursuant to the terms of § 220.2.
- (2) For the purposes of this subsection, "family care" shall include care provided to a candidate's child or dependent, including, but not limited to, professional or casual babysitting services, non-profit or for-profit organizations that provide such services, and any other costs directly related to such services that occur as a result of campaign activity for County elected office, but not including preprimary, primary, or secondary education. In addition, for the purposes of this section, the term "family care" shall also include supervision of and/or any costs incurred in campaign activity for County elected office and which are directly related to supervision of any of the following:
 - (a) A biological, adopted or foster child, stepchild or legal ward, a child of a domestic partner, or a child to whom the candidate stands in loco parentis;
 - (b) A biological, foster, adoptive, or stepparent, or legal guardian of a candidate or a candidate's spouse or domestic partner or a person who stood in loco parentis to a candidate when the candidate was a minor child;
 - (c) A person to whom the candidate is legally married under the laws of any state;
 - (d) A biological, foster, or adopted sibling;
 - (e) A domestic partner.
- (3) Family care expenses shall not include payments to a member of the candidate's household or family. For the purposes of this subsection, "family" shall be considered a candidate's parent, stepparent, child, stepchild, sibling, stepsibling, grandparent, grandchild, parent-in-law, sibling-in-law, aunt, uncle, first cousin, or persons otherwise related by consanguinity or affinity.
- (4) The candidate committee shall disclose and report these expenditures in the same manner as all other expenditures that the candidate committee is required to disclose and report under all applicable law.

§ 220-3. Electronic submission not required. [Added 7-11-2023 by Ord. No. 21-23]

The filing of campaign finance reports and campaign finance statements through electronic means shall be permitted and encouraged, but not required. The Elections Division shall continue to accept such reports filed on paper.

§ 220-4. Database report accessibility. [Added 7-11-2023 by Ord. No. 21-23]

Campaign finance reports and campaign finance statements, regardless of the means by which they were filed with the Elections Division, shall be posted and accessible to the public through the County's website within 72 hours of each filing deadline and shall remain accessible for a period of no less than five years from the date of submission.

§ 220-5. (Reserved)

§ 220-6. Candidate committees and accounts.

- A. A candidate for County elected office shall have no more than one candidate committee and one associated bank account for each County elected office being sought, into which all political contributions in support of a campaign for said office shall be made, and out of which all expenditures in support of a campaign for said office shall be made.
- B. Candidates are prohibited from donating or transferring funds from one candidate committee or any other political committee to another candidate committee at an amount above the campaign finance limits set forth in this chapter in any and all circumstances.
- C. Candidates are prohibited from amending an existing candidate committee and assigning it and the funds associated with it for the use in support of a different campaign for County elected office than it was originally intended.

§ 220-7. Special elections.

In instances where a special election and another covered election fall on the same day, the two elections together shall be considered a single covered election for reporting, contribution limits, and all other provisions and purposes in this chapter. In instances where a special election and another covered election do not fall on the same day, the two elections together shall be considered separate covered elections for reporting, contribution limits, and all other provisions and purposes in this chapter. Stacking contributions, whereby a candidate accepts a contribution for the special election and the primary election at the same time or during the same election cycle, is prohibited.

§ 220-8. Reporting.

In addition to other reporting deadlines established pursuant to commonwealth law, candidates and candidate political committees shall, on the sixth Tuesday prior to any primary or general election day, provide a campaign finance report, for all candidate political committees associated with the candidate for County office, in the form mandated by the regular Allegheny County Board of Elections pre-primary reporting forms and procedures, to the Allegheny County Division of Elections, as required pursuant to the terms of this chapter. In the event that a special election is scheduled in a fashion that precludes report filing by the sixth Tuesday prior to such election, these reports shall be due no later than 30 days' prior to such election. Included with all reports filed under the terms of this section shall be an additional schedule that details the name of each contributor and the total contribution made by each contributor to the candidate committee both in the then current election cycle in a form to be promulgated by Division of Elections and made available via the Allegheny County website.

§ 220-9. Penalties and investigations. [Amended 7-11-2023 by Ord. No. 21-23]

- A. Any person residing in the County of Allegheny, including the County Solicitor, may bring an action for injunctive or other relief in any court of competent jurisdiction to enjoin any violations of or to compel compliance with the provisions of this chapter.
- B. Pursuant to the procedures established in Article 1013 of the Administrative Code of Allegheny County², the Allegheny County Ethics Commission shall also be empowered to hear complaints from County residents regarding violations of this chapter, and may use all of its powers to investigate alleged violations in accordance with its normal administrative procedures and powers. Nothing

2. Editor's Note: See Ch. 5, Administrative Code, Art. 1013.

contained within this subsection shall be read, interpreted, or otherwise deemed to limit the right of any County resident to seek injunctive or other relief as provided for in Subsection A.

- C. When the Ethics Commission makes any final finding of fact under the provisions of § 5-1013.28 of the Administrative Code of Allegheny County relating to alleged violations of this chapter, it shall forward such finding to the County Solicitor within seven days of issuance.
- (1) Within 20 days of receipt of the finding of fact, the County Solicitor may, at his or her sole discretion, institute an enforcement action in any court of competent jurisdiction. In the event that such court determines that one or more violations of the terms of this chapter after de novo review of the facts and circumstances alleged by the County Solicitor, such court shall levy a fine on a candidate for such violation(s).
 - (2) The fine shall be the greater of either \$1,000 per instance of a violation of this law, in which an instance shall be a single donation above the campaign finance limit, or \$1,000 for every \$2,000 accepted by the candidate committee above the campaign finance limits set forth in this chapter. Candidates shall also be required to fully refund all donations received above the campaign finance limits set forth in this chapter.
- D. The County Elections Division shall levy a fine of \$50/day for the late filing of reports required under § 220.5 of this chapter.
- E. No person elected to a public office of the County of Allegheny shall receive a salary, stipend, expense reimbursement, or any other payment of funds of any sort from the County of Allegheny if they have outstanding fines owed related to penalties levied under the terms of this chapter, or if they have not completed any action required by County Elections Division or court order relating to the terms of this chapter.
- F. Candidates shall pay any and all fines assessed under the terms of this chapter from the candidate's personal funds. Use of campaign funds to pay such fines, whether in whole or in part, shall constitute a separate violation of this chapter, and shall be punishable by a fine of \$1,000 per payment.

§ 220-10. Coordinated expenditures; in-kind contributions. [Added 7-11-2023 by Ord. No. 21-23]

Coordinated expenditures shall be deemed in-kind political contributions to a candidate or candidate committee for the purposes of this chapter. Coordinated expenditures shall include (but not limited to) the following instances:

- A. The expenditure is made at the request or suggestion of the candidate or candidate committee;
- B. A person suggests making an expenditure and the candidate or candidate committee assents to the suggestion;
- C. The person making the expenditure communicates with the candidate or candidate committee concerning the expenditure before making the expenditure;
- D. The candidate or candidate committee has solicited funds for or directed funds to the person making the expenditure, but only if the solicitation occurred within the 12 months before the election that the expenditure seeks to influence; or
- E. The candidate or candidate committee directs, places, or arranges the expenditure; or
- F. The person making the expenditure uses information obtained from the candidate or candidate

committee to design, prepare, or pay for the specific expenditure at issue, unless the person has obtained that information from a public source or from a communication the candidate or candidate committee made to the general public. This subsection does not apply to the republication of candidate or candidate committee communications or materials, which is covered by § 220.11 of this chapter.

- G. The person making the expenditures does so based on instructions received from the candidate or candidate committee. A public communication by a candidate or candidate committee will constitute such instructions only if:
- (1) The communication includes a suggestion that the electorate or segment thereof be made aware of information identified in the communication; and
 - (2) The communication suggests the manner in which the information should be presented, including (but not limited to) instances in which the communication includes a phrase such as "voters need to hear" or "voters need to see." Despite the presence of these factors, coordination will not be found if the person can demonstrate that they had an independent basis for making the expenditure.

§ 220-11. Coordinated expenditures; exceptions. [Added 7-11-2023 by Ord. No. 21-23]

An expenditure will not be considered a coordinated expenditure for the purposes of this chapter merely because:

- A. The person making the expenditure interviews the candidate;
- B. The person making the expenditure has endorsed the candidate;
- C. The person making the expenditure and the candidate or candidate committee use the same vendor, attorney, or accountant;
- D. The person making the expenditure has obtained from the candidate or candidate committee a biography of the candidate or a position paper, press release, or similar material about the candidate; or
- E. The person making the expenditure has invited the candidate to make an appearance before the person's members, employees, or shareholders.

§ 220-12. Other in-kind contributions; redboxing. [Added 7-11-2023 by Ord. No. 21-23]

- A. For the purposes of the political contribution limits established pursuant to the terms of this chapter, an expenditure made to reproduce, republish, or disseminate a campaign communication (including audio recordings or video footage) or campaign material (such as photographs, flyers, signs, or brochures) prepared by a candidate or candidate committee:
- (1) Shall be considered an in-kind political contribution made by the person making the expenditure;
 - (2) Shall be considered an in-kind political contribution received by the candidate and/or candidate committee if the person making the expenditure obtains the communication or materials directly from the candidate and/or candidate committee, or from another source with the consent of the candidate or candidate committee. For the purposes of this section, a campaign communication or campaign material is obtained with the candidate's or candidate committee's consent if such

candidate or candidate committee provides it to a third party for the purpose of enabling another person to obtain the communication or material from that third party and subsequently republish some or all of it; and

- (3) Shall be subject to the penalties established in § 220.9 in the event that such expenditures are not reported as required herein.

B. Notwithstanding any provision of Subsection A, republication of campaign materials shall not be considered an in-kind political contribution to the extent that:

- (1) The communication or material is incorporated into a communication that advocates the defeat of the candidate or candidate committee that prepared the material;
- (2) The item republished is a photograph or video obtained from a public source that is not controlled by the candidate or candidate committee; or
- (3) The person's expenditures for republication of a campaign's communications or materials are less than \$100 in the aggregate per reporting period.

§ 220-13. Effect upon other law. [Added 7-11-2023 by Ord. No. 21-23]

Nothing contained within the terms of this chapter shall be read or interpreted to abrogate, reduce, enlarge, or in any other way alter campaign finance or campaign finance reporting obligations imposed upon any candidate or candidate committee by other applicable law or regulation.